considered, which can, by any person, be pretended, in any manner, to apply to this case, but that which concerns corporations. The applicability of this, the attorney-general, with great candor, has expressly waived. But as it may be *urged on other occasions, and as I wish to give the fullest satisfaction, I will say a few words to that doctrine. Suppose, therefore, [*447 it should be objected, that the reasoning I have now used, is not conclusive, because, inasmuch as a state is made subject to the judicial power of congress, its sovereignty must not stand in the way of the proper exercise of that power, and therefore, in all such cases (though in no other), a state can only be considered as a subordinate corporation merely. I answer: 1st. That this construction can only be allowed, at the utmost, upon the supposition that the judicial authority of the United States, as it respects states, cannot be effectuated, without proceeding against them in that light: a position, I by no means admit. 2d. That according to the principles I have supported in this argument, admitting that states ought to be so considered for that purpose, an act of the legislature is necessary to give effect to such a construction, unless the old doctrine concerning corporations will naturally apply to this particular case. 3d. That as it is evident, the act of congress has not made any special provision in this case, grounded on any such construction, so it is to my mind perfectly clear, that we have no authority, upon any supposed analogy between the two cases, to apply the common doctrine concerning corporations, to the important case now before the court. I take it for granted, that when any part of an ancient law is to be applied to a new case, the circumstances of the new case must agree in all essential points with the circumstances of the old cases to which that ancient law was formerly appropriated. Now, there are, in my opinion, the most essential differences between the old cases of corporations, to which the law intimated has reference, and the great and extraordinary case of states separately possessing, as to everything simply relating to themselves, the fullest powers of sovereignty, and yet, in some other defined particulars, subject to a superior power, composed out of themselves, for the common welfare of the whole. The only law concerning corporations, to which I conceive the least reference is to be had, is the common law of England on that subject. I need not repeat the observations I made in respect to the operation of that law in this country. The word "corporations," in its largest sense, has a more extensive meaning than people generally are aware of. Any body politic (sole or aggregate), whether its power be restricted or transcendent, is in this sense, "a corporation." The king, accordingly, in England, is called a corporation. 10 Co. 29 *b*. So also, by a very respectable author (Sheppard, in his Abridgement, 1 vol. 431), is the parliament itself. In this extensive sense, not only each state singly, but even the United States may, without impropriety, be termed "corporations." I have, therefore, in contradistinction to this large and indefinite *term, used the term [*448 "subordinate corporations," meaning to refer to such only (as alone capable of the slightest application, for the purpose of the objection) whose creation and whose powers are limited by law.

The differences between such corporations, and the several states in the Union, as relative to the general government, are very obvious, in the following particulars. 1st. A corporation is a mere creature of the king, or of parliament; very rarely, of the latter; most usually, of the former only.

It owes its existence, its name, and its laws (except such laws as are necessarily incident to all corporations merely as such), to the authority which create it. A state does not owe its origin to the government of the United States, in the highest or in any of its branches. It was in existence before it. It derives its authority from the same pure and sacred source as itself: the voluntary and deliberate choice of the people. 2d. A corporation can do no act but what is subject to the revision either of a court of justice, or of some other authority within the government. A state is altogether exempt from the jurisdiction of the courts of the United States, or from any other exterior authority, unless in the special instances where the general government has power derived from the constitution itself. 3d. A corporation is altogether dependent on that government to which it owes its existence. Its charter may be forfeited by abuse: its authority may be annihilated, without abuse, by an act of the legislative body. A state, though subject, in certain specified particulars, to the authority of the government of the United States, is, in every other respect, totally independent upon it. The people of the state created, the people of the state can only change, its constitution. Upon this power, there is no other limitation but that imposed by the constitution of the United States; that it must be of the republican form. I omit minuter distinctions. These are so palpable, that I never can admit that a system of law, calculated for one of these cases, is to be applied, as a matter of course, to the other, without admitting (as I conceive) that the distinct boundaries of law and legislation may be confounded, in a manner that would make courts arbitrary, and, in effect, makers of a new law, instead of being (as certainly they alone ought to be) expositors of an existing one. If still it should be insisted, that though a state cannot be considered upon the same footing as the municipal corporations I have been considering, yet, as relative to the powers of the general government, it must be deemed in some measure dependent; admitting that to be the case (which to be sure is, so far as the necessary execution of the powers of the general government extends), yet, in whatever character this may place a
*449] state, this can only afford a reason for a new law, *calculated to effectuate the powers of the general government in this new case: but it affords no reason whatever for the court admitting a new action to fit a case, to which no old ones apply, when the *application* of law, not the *making* of it, is the sole province of the court.

I have now, I think, established the following particulars. 1st. That the constitution, so far as it respects the judicial authority, can only be carried into effect, by acts of the legislature, appointing courts, and prescribing their methods of proceeding. 2d. That congress has provided no new law in regard to this case, but expressly referred us to the old. 3d. That there are no principles of the old law, to which we must have recourse, that in any manner authorize the present suit, either by precedent or by analogy. The consequence of which, in my opinion, clearly is, that the suit in question cannot be maintained, nor, of course, the motion made upon it be complied with.

From the manner in which I have viewed this subject, so different from that in which it has been contemplated by the attorney-general, it is evident, that I have not had occasion to notice many arguments offered by the attorney-general, which certainly were very proper, as to his extended view